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The Statutory Trap: How IFA Demand Loans Can Trigger Tax Shelter Rules

David Kakon, Math Honours B.Sc., July 2026 / David@ArmstrongLife.com

In the Canadian life insurance market, Immediate Financing Arrangements (IFAs) are frequently marketed as tax-efficient corporate wealth strategies. However, a critical technical error occurs when advisors and financial institutions conflate the commercial definition of a recourse loan with the statutory definition of a "limited-recourse amount" under Section 143.2 of the Income Tax Act (ITA). This conflation masks a severe compliance risk: the mathematical classification of the IFA as an Unregistered Tax Shelter under ITA s. 237.1.

This memo clarifies the mechanical application of the ITA to IFA loan facilities, specifically addressing the "demand loan" defence in relation to the IFA and the 10-year repayment rule.

The Core Misconception: Commercial vs. Statutory Recourse

When evaluating whether a loan triggers tax-shelter provisions, industry practitioners often point to outside collateral, personal guarantees, its annually-renewable structure, and the lender's ability to call the loan on demand as proof that the debt is "fully recourse."

While these features satisfy a bank's commercial risk requirements, they do not meet the Canada Revenue Agency (CRA) requirements. The ITA does not evaluate the economic reality of collateral; it relies strictly on a statutory deeming rule to determine if debt is limited-recourse.

The 10-Year Statutory Test and the "Unless" Clause: ITA Section 143.2(7)

Under ITA s. 143.2(7), the statute establishes a strict **deeming provision**. The law explicitly commands that an unpaid principal amount is *deemed* to be a limited-recourse amount ***unless*** a mandatory timing condition is met at inception:

> *"...the unpaid principal amount of the indebtedness shall be deemed to be a limited-recourse amount...* ***unless*** *bona fide arrangements were made in writing, at the time the indebtedness arose, for repayment of all principal and interest... within a reasonable period not exceeding 10 years."*

Because subsection 143.2(7) is a deeming provision governed by a strict "unless" trigger, outside personal collateral, cash pledges, or guarantees are legally irrelevant. A deeming provision creates a legal fiction that overrides commercial facts. If a written 10-year repayment schedule does not exist at inception, the statute covers its ears, ignores the outside collateral, and legally deems the debt to be limited-recourse.

"No-Cost" IFA strategies are inherently designed as lifelong arrangements. The structural pitch is generally the same: buy more insurance than needed, carry the debt required to recover the premiums (plus net insurance costs in some cases), and use the target net death benefit to yield the seemingly "free" insurance originally sought. Because this economic opportunity relies entirely on holding the loan until death to repay the principal, a bona fide written agreement to repay within 10 years cannot logically exist at inception. Without that mandatory documentation, the loan is statutorily deemed a "limited-recourse amount" on Day 1.

Without that 10-year written repayment agreement, the loan defaults to a "limited-recourse amount" by statutory law, regardless of how much collateral the borrower has pledged.

The "Demand Loan" Fallacy: ITA Section 143.2(12)

To circumvent the 10-year rule, many institutions structure IFA financing as 1-year renewable demand loans. The argument is that a 1-year loan is, by definition, shorter than 10 years.

The ITA explicitly closes this loophole. Under ITA s. 143.2(12), if a repayment can reasonably be considered part of a series of loans or rolling indebtedness, the CRA treats the series as one continuous loan.

> ***(12)*** *For the purpose of paragraph 143.2(7)(a), a debtor is considered not to have made arrangements to repay an indebtedness within 10 years where the debtor's arrangement to repay can reasonably be considered to be part of a series of loans or other indebtedness and repayments that ends more than 10 years after it begins.*

If the paper trail, such as the advisor's marketing illustrations, indicates that the loan renews annually for 30 or 40 years until death, the CRA will invoke 143.2(12). The "demand loan" is treated as a continuous, lifelong facility that lacks a 10-year repayment agreement, rendering it a limited-recourse amount.

The Mathematical Cascade: Transitioning to a Tax Shelter

Once the IFA loan is classified as a limited-recourse amount, the transition to an unregistered tax shelter is purely mathematical, governed by ITA s. 237.1:

1. **Prescribed Benefit Integration:** Under Income Tax Regulation 3100(3), any limited recourse amount under s. 143.2(7) is explicitly classified as a "prescribed benefit."
2. **The Net Cost Calculation (ITA s. 237.1(1)):** To calculate the legal "Net Cost" of an investment, the ITA mandates that the cost basis must be reduced by all expected prescribed benefits. Because the limited-recourse loan typically equals the out-of-pocket premiums paid, the mathematically Net Cost drops to **$0**.
3. **The Tax Shelter Trigger:** Section 237.1 defines a tax shelter mathematically: If the *statements or representations* (marketing illustrations) show that the expected tax deductions in any of the first four years equal or exceed the Net Cost, the arrangement is a tax shelter.

Because the Net Cost is forced to $0 by the limited-recourse rules, illustrating even $1 of interest or NCPI deduction in the first four years triggers the definition.

The "Smoking Gun" Paper Trail

The most significant liability for the IFA industry is its own marketing material. The CRA does not have to guess the intent of the loan. Section 237.1 explicitly relies on *"statements or representations made or proposed to be made in connection with the arrangement."*

When an advisor provides a client with an IFA illustration showing the loan balance growing for decades and being repaid solely by the death benefit, they are providing a formal, written representation that there is zero intent to repay the loan within 10 years. This illustration serves as the definitive proof required by the CRA to classify the demand loan as limited recourse under 143.2(12), thereby triggering the $0 Net Cost tax shelter formula.

To understand how strictly the CRA applies these statutory definitions, practitioners must look at the CRA's own technical interpretations. A definitive example is found in the CRA advance income tax ruling 2010 Ruling 2009-0340381R3 F. While this specific ruling evaluated an insured annuity strategy, under ITA s. 143.2, the CRA evaluates the financing structure independently, meaning the statutory definition of a limited-recourse demand loan applies universally, regardless of the underlying asset being financed. The ruling provides confirmation of the statutory trap regarding demand loans:

- **Demand Loans are Limited-Recourse:** In the ruling's facts, the taxpayer borrowed funds using a demand loan ("prêt remboursable à demande") from a bank. The CRA explicitly declared that this demand loan constitutes a limited-recourse amount under subsection 143.2(1) of the Income Tax Act.
- **Automatic Prescribed Benefit Trigger:** The CRA further established that because the demand loan is a limited-recourse amount, it automatically constitutes a prescribed benefit ("avantage visé par règlement"). As established in the statutory chain, a prescribed benefit forces the legally recognized Net Cost of the arrangement to drop.
- **The Purely Mathematical Tax Shelter Test:** When asked to rule on whether the arrangement constituted a tax shelter under subsection 237.1(1), the CRA did not look at the commercial intent or the presence of outside collateral. Instead, the CRA stated the arrangement would avoid being classified as a tax shelter *only if* the mathematical deductions at the end of a taxation year within the first four years were not equal to or greater than the net cost.

The Verdict from the Ruling: This 2010 ruling legally validates the core premise of the IFA statutory trap. The CRA formally acknowledges that a demand loan lacking a bona fide 10-year repayment agreement is a limited-recourse amount. Consequently, if an IFA illustration models tax deductions that exceed a Net Cost reduced to $0 by that same limited-recourse loan, the arrangement strictly fulfills the CRA's own criteria for an unregistered tax shelter.

Conclusion for Practitioners

You cannot reliably use commercial collateral or the presence of a callable demand loan to defend an IFA against tax shelter classification. The test under ITA s. 143.2 and s. 237.1 is entirely mathematical. If the structure is presented as a lifelong loan to fund life insurance, it lacks the statutory 10-year repayment mandate, rendering the loan limited-recourse and exposing the client to a 100% retroactive denial of tax deductions for operating an unregistered tax shelter.

For a detailed review of the implications of the IFA & Tax Shelter status, please refer to the analysis available at https://tax-shelter.ca

David Kakon
Math Honours, B.Sc.
Direct: (514) 574-0233
David@ArmstrongLife.com

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Appendix: Anatomy of the "No-Cost" Insurance Trap

		Policy Details			Bank Loan Detail				Investment Detail				IFA				ABI vs IFA
Year	Year / Age	Annual Premium/ Deposit	Total Cash Value	Total Death Benefit	Loan Advances	Annual Interest Payable	Loan Balance	Bank Loan Rate	Loan Interest Tax Recovery	NCPI Tax Recovery	Net Interest Cost	Net Annual Cost	Death Proceeds Net of Loan	Estate Value of Unused CDA	Net Available to Estate (incl CDA)	Potential Collateral Shortfall	IFA Additional Net Benefit
[A]	[B]	[C]	[D]	[E]	[F]	[G]	[H]	[I]	[J]	[K]	[L]	[M]	[N]	[O]	[P]	[Q]	[R]
						Interest on [H]			Annual Interest *26.50%	NCPI * (Loan Balance / DB)*26.50%	[G]-[J]-[K]	[C]-[F]+[G]-[J]-[K]	[E]-[H]	39.34% *Unused CDA	39.34% *Unused CDA + after-tax net DB	[H]-100%*[D]	
1	1 | 30	200,000	123,156	4,748,556	200,000	10,500	207,694	5.25%	2,783	23	7,694	(0)	4,540,861	3,812	4,544,673	84,539	4,423,353
2	2 | 31	200,000	297,002	5,205,428	200,000	21,404	423,371	5.25%	5,672	56	15,676	(0)	4,782,057	10,996	4,793,053	126,369	4,550,413
3	3 | 32	200,000	468,974	5,709,626	200,000	32,727	647,331	5.25%	8,673	94	23,960	(0)	5,062,295	21,653	5,083,947	178,357	4,719,987
4	4 | 33	200,000	671,119	6,261,782	200,000	44,485	879,886	5.25%	11,788	141	32,555	(0)	5,381,896	35,954	5,417,849	208,767	4,932,569
5	5 | 34	200,000	888,804	6,844,229	200,000	56,694	1,121,362	5.25%	15,024	194	41,476	0	5,722,867	54,031	5,776,898	232,558	5,170,298
6	6 | 35	200,000	1,124,493	7,464,364	200,000	69,371	1,372,102	5.25%	18,383	248	50,740	0	6,092,262	75,996	6,168,258	247,608	5,440,338
7	7 | 36	200,000	1,379,560	8,123,077	200,000	82,535	1,632,461	5.25%	21,872	304	60,360	(0)	6,490,616	101,984	6,592,600	252,902	5,743,360
8	8 | 37	200,000	1,654,025	8,814,547	200,000	96,204	1,902,812	5.25%	25,494	359	70,351	0	6,911,735	132,131	7,043,866	248,788	6,073,306
9	9 | 38	200,000	1,944,848	9,519,295	200,000	110,398	2,183,541	5.25%	29,255	414	80,728	0	7,335,755	166,567	7,502,322	238,692	6,410,442
10	10 | 39	200,000	2,252,876	10,237,504	200,000	125,136	2,475,030	5.25%	33,161	486	91,489	(0)	7,762,475	205,544	7,968,018	222,154	6,754,818
11	11 | 40	200,000	2,579,037	10,969,380	200,000	140,439	2,777,683	5.25%	37,216	570	102,653	0	8,191,698	249,266	8,440,964	198,646	7,106,444
12	12 | 41	200,000	2,924,316	11,715,134	200,000	156,328	3,091,912	5.25%	41,427	672	114,229	(0)	8,623,222	297,985	8,921,207	167,596	7,465,367
13	13 | 42	200,000	3,289,639	12,474,998	200,000	172,825	3,418,134	5.25%	45,799	804	126,223	(0)	9,056,864	351,998	9,408,861	128,495	7,831,701
14	14 | 43	200,000	3,604,665	13,245,358	200,000	189,952	3,756,779	5.25%	50,337	970	138,645	(0)	9,488,579	411,617	9,900,197	152,115	8,201,717
15	15 | 44	200,000	3,927,264	14,021,552	200,000	207,731	4,108,302	5.25%	55,049	1,159	151,523	0	9,913,250	477,099	10,390,349	181,038	8,570,549
16	16 | 45	200,000	4,267,854	14,803,328	200,000	226,186	4,473,168	5.25%	59,939	1,381	164,866	(0)	10,330,160	548,742	10,878,902	205,314	8,937,782
17	17 | 46	200,000	4,627,328	15,591,070	200,000	245,341	4,851,899	5.25%	65,015	1,595	178,731	0	10,739,171	626,662	11,365,833	224,572	9,303,393
18	18 | 47	200,000	5,006,875	16,385,145	200,000	265,225	5,244,997	5.25%	70,285	1,842	193,098	0	11,140,147	711,168	11,851,316	238,122	9,667,556
19	19 | 48	200,000	5,409,508	17,192,700	200,000	285,862	5,652,980	5.25%	75,754	2,126	207,983	(0)	11,539,719	802,587	12,342,306	243,473	10,037,226
20	20 | 49	200,000	5,836,603	18,014,268	200,000	307,281	6,076,394	5.25%	81,430	2,439	223,413	(0)	11,937,874	901,211	12,839,085	239,790	10,412,685
21	21 | 50	0	6,226,117	18,653,176	0	319,011	6,310,866	5.25%	84,538	0	234,473	0	12,342,310	1,005,368	13,347,678	84,750	10,921,278
22	22 | 51	0	6,639,260	19,308,206	0	331,320	6,554,387	5.25%	87,800	0	243,521	0	12,753,819	1,114,443	13,868,262	0	11,441,862
23	23 | 52	0	7,077,425	19,979,721	0	344,105	6,807,304	5.25%	91,188	0	252,917	0	13,172,417	1,228,747	14,401,164	0	11,974,764
24	24 | 53	0	7,541,893	20,668,104	0	357,383	7,069,981	5.25%	94,707	0	262,677	0	13,598,123	1,348,602	14,946,725	0	12,520,325
25	25 | 54	0	8,034,017	21,373,747	0	371,174	7,342,794	5.25%	98,361	0	272,813	0	14,030,953	1,474,333	15,505,286	0	13,078,886
26	26 | 55	0	8,555,225	22,097,051	0	385,497	7,626,134	5.25%	102,157	0	283,340	0	14,470,917	1,606,276	16,077,193	0	13,650,793
27	27 | 56	0	9,106,850	22,838,432	0	400,372	7,920,408	5.25%	106,099	0	294,273	0	14,918,024	1,744,924	16,662,948	0	14,236,548
28	28 | 57	0	9,690,232	23,598,317	0	415,821	8,226,036	5.25%	110,193	0	305,629	0	15,372,280	1,890,675	17,262,955	0	14,836,555
29	29 | 58	0	10,306,528	24,377,155	0	431,867	8,543,459	5.25%	114,445	0	317,422	0	15,833,696	2,043,984	17,877,681	0	15,451,281
30	30 | 59	0	10,957,015	25,175,399	0	448,532	8,873,129	5.25%	118,861	0	329,671	0	16,302,270	2,205,416	18,507,686	0	16,081,286
31	31 | 60	0	11,642,904	25,993,514	0	465,839	9,215,521	5.25%	123,447	0	342,392	0	16,777,993	2,375,591	19,153,584	0	16,727,184
32	32 | 61	0	12,365,105	26,831,983	0	483,815	9,571,125	5.25%	128,211	0	355,604	0	17,260,858	2,555,131	19,815,989	0	17,389,589
33	33 | 62	0	13,124,405	27,691,302	0	502,484	9,940,451	5.25%	133,158	0	369,326	0	17,750,851	2,744,765	20,495,617	0	18,069,217
34	34 | 63	0	13,921,733	28,571,969	0	521,874	10,324,028	5.25%	138,297	0	383,577	0	18,247,941	2,945,269	21,193,210	0	18,766,810
35	35 | 64	0	14,757,936	29,474,489	0	542,011	10,722,407	5.25%	143,633	0	398,378	0	18,752,083	3,157,467	21,909,550	0	19,483,150
36	36 | 65	0	15,633,891	30,399,373	0	562,926	11,136,157	5.25%	149,175	0	413,751	0	19,263,216	3,382,275	22,645,491	0	20,219,091
37	37 | 66	0	16,550,266	31,347,142	0	584,648	11,565,874	5.25%	154,932	0	429,716	0	19,781,268	3,620,699	23,401,967	0	20,975,567
38	38 | 67	0	17,507,903	32,318,315	0	607,208	12,012,172	5.25%	160,910	0	446,298	0	20,306,143	3,873,827	24,179,970	0	21,753,570
39	39 | 68	0	18,507,723	33,313,416	0	630,639	12,475,692	5.25%	167,119	0	463,520	0	20,837,724	4,142,822	24,980,547	0	22,554,147
40	40 | 69	0	19,550,638	34,332,974	0	654,974	12,957,097	5.25%	173,568	0	481,406	0	21,375,877	4,428,858	25,804,735	0	23,378,335
41	41 | 70	0	20,637,649	35,377,523	0	680,248	13,457,079	5.25%	180,266	0	499,982	0	21,920,444	4,733,270	26,653,714	0	24,227,314
42	42 | 71	0	21,769,781	36,447,603	0	706,497	13,976,355	5.25%	187,222	0	519,275	0	22,471,249	5,057,438	27,528,687	0	25,102,287
43	43 | 72	0	22,948,517	37,543,754	0	733,759	14,515,667	5.25%	194,446	0	539,313	0	23,028,086	5,402,721	28,430,808	0	26,004,408
44	44 | 73	0	24,169,457	38,666,400	0	762,073	15,075,790	5.25%	201,949	0	560,123	0	23,590,610	5,770,653	29,361,263	0	26,934,863
45	45 | 74	0	25,434,186	39,815,826	0	791,479	15,657,527	5.25%	209,742	0	581,737	0	24,158,299	6,159,671	30,317,970	0	27,891,570
46	46 | 75	0	26,750,211	40,992,466	0	822,020	16,261,712	5.25%	217,835	0	604,185	0	24,730,753	6,397,358	31,128,111	0	28,701,711
47	47 | 76	0	28,120,004	42,196,915	0	853,740	16,889,211	5.25%	226,241	0	627,499	0	25,307,704	6,644,216	31,951,919	0	29,525,519
48	48 | 77	0	29,546,324	43,429,792	0	886,684	17,540,924	5.25%	234,971	0	651,712	0	25,888,868	6,900,599	32,789,467	0	30,363,067
49	49 | 78	0	31,032,492	44,691,733	0	920,898	18,217,784	5.25%	244,038	0	676,860	0	26,473,950	7,166,876	33,640,826	0	31,214,426
50	50 | 79	0	32,582,333	45,983,405	0	956,434	18,920,763	5.25%	253,455	0	702,979	0	27,062,643	7,443,428	34,506,071	0	32,079,671
51	51 | 80	0	34,200,559	47,305,498	0	993,340	19,650,868	5.25%	263,235	0	730,105	0	27,654,631	7,730,651	35,385,282	0	32,958,882
52	52 | 81	0	35,892,835	48,658,739	0	1,031,671	20,409,145	5.25%	273,393	0	758,278	0	28,249,593	8,028,958	36,278,551	0	33,852,151
53	53 | 82	0	37,664,578	50,043,877	0	1,071,480	21,196,683	5.25%	283,942	0	787,538	0	28,847,194	8,338,775	37,185,969	0	34,759,569
54	54 | 83	0	39,504,275	51,461,971	0	1,112,826	22,014,610	5.25%	294,899	0	817,927	0	29,447,361	8,660,548	38,107,908	0	35,681,508
55	55 | 84	0	41,397,123	52,914,139	0	1,155,767	22,864,099	5.25%	306,278	0	849,489	0	30,050,040	8,994,737	39,044,777	0	36,618,377
56	56 | 85	0	43,339,982	54,401,311	0	1,200,365	23,746,368	5.25%	318,097	0	882,268	0	30,654,944	9,341,821	39,996,765	0	37,570,365
57	57 | 86	0	45,329,461	55,924,454	0	1,246,684	24,662,681	5.25%	330,371	0	916,313	0	31,261,773	9,702,299	40,964,072	0	38,537,672
58	58 | 87	0	47,362,151	57,484,571	0	1,294,791	25,614,352	5.25%	343,120	0	951,671	0	31,870,219	10,076,686	41,946,905	0	39,520,505
59	59 | 88	0	49,433,562	59,082,723	0	1,344,753	26,602,746	5.25%	356,360	0	988,394	0	32,479,977	10,465,520	42,945,498	0	40,519,098
60	60 | 89	0	51,537,314	60,720,038	0	1,396,644	27,629,279	5.25%	370,111	0	1,026,533	0	33,090,759	10,869,358	43,960,118	0	41,533,718
61	61 | 90	0	53,660,169	62,390,651	0	1,450,537	28,695,424	5.25%	384,392	0	1,066,145	0	33,695,227	11,288,780	44,984,007	0	42,557,607
62	62 | 91	0	55,796,079	64,095,961	0	1,506,510	29,802,708	5.25%	399,225	0	1,107,285	0	34,293,253	11,724,386	46,017,639	0	43,591,239
63	63 | 92	0	57,939,245	65,837,411	0	1,564,642	30,952,720	5.25%	414,630	0	1,150,012	0	34,884,691	12,176,800	47,061,491	0	44,635,091
64	64 | 93	0	60,115,995	67,615,974	0	1,625,018	32,147,109	5.25%	430,630	0	1,194,388	0	35,468,866	12,646,673	48,115,538	0	45,689,138
65	65 | 94	0	62,360,581	69,432,515	0	1,687,723	33,387,585	5.25%	447,247	0	1,240,477	0	36,044,929	13,134,676	49,179,605	0	46,753,205
66	66 | 95	0	64,692,750	71,288,146	0	1,752,848	34,675,929	5.25%	464,505	0	1,288,343	0	36,612,218	13,641,510	50,253,728	0	47,827,328
67	67 | 96	0	67,153,440	73,183,676	0	1,820,486	36,013,986	5.25%	482,429	0	1,338,057	0	37,169,690	14,167,902	51,337,592	0	48,911,192
68	68 | 97	0	69,820,841	75,119,379	0	1,890,734	37,403,676	5.25%	501,045	0	1,389,690	0	37,715,703	14,714,606	52,430,309	0	50,003,909
69	69 | 98	0	72,835,588	77,094,675	0	1,963,693	38,846,990	5.25%	520,379	0	1,443,314	0	38,247,685	15,282,406	53,530,091	0	51,103,691
70	70 | 99	0	76,452,750	79,107,535	0	2,039,467	40,345,998	5.25%	540,459	0	1,499,008	0	38,761,537	15,872,116	54,633,652	0	52,207,252

The standard IFA illustration (as prepared by major Canadian bank private wealth departments) is the definitive paper trail. In one neat, self-contained table, it proves mathematically that the arrangement fulfills every statutory requirement of an unregistered tax shelter under ITA s. 237.1(1).

- [Cols C & F] — Zero Cash Outlay: The Premium Deposit (Col C: $$200,000) is immediately offset 100% by the Bank Loan Advance (Col F: $200,000), resulting in zero net capital outlay.

- [Col H] — Lifelong Indebtedness (The Deeming Trigger): The Loan Balance (Col H) is explicitly modeled growing and renewing annually through age 99/death. Under ITA s. 143.2(12), this multi-decade projection proves a continuous series of loans lacking a written 10-year repayment agreement, automatically deeming the facility a limited-recourse amount under s. 143.2(7).

- [Col J & K & L] Represented Tax Deductions: The schedule explicitly projects tax recoveries derived from annual loan interest deductions (Col J) and NCPI insurance deductions (Col K).

- [Col M] Statutory Net Cost Forced to $0: Because limited-recourse debt is classified as a prescribed benefit under ITR 3100(3), the legal Net Cost of the investment must be reduced by the loan amount. The illustration itself explicitly prints $0 Net Annual Cost across every single year in Column M.

Deduction Rate: 26.5%
Personal Dividend Tax Rate: 39.34%
Loan Ratio: 100%   Loan Rate: 5.25%
primary dividend scale

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